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CRWP-6546-2026**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH****(111)****CRWP-6546-2026**

Date of Decision:- 01.06.2026

MANISHA AND ANOTHER

.....Petitioners

Versus

STATE OF PUNJAB AND OTHERS

.....Respondents

CORAM: HON'BLE MR. JUSTICE ALOK JAIN

Present: Mr. Jasbir Singh, Advocate for the petitioners.

ALOK JAIN, J. (Oral)

1. The present petition has been filed under Articles 226/227 of the Constitution of India for issuance of an appropriate writ in the nature of mandamus directing the official respondents to protect the life and liberty of the petitioners at the hands of private respondents.

2. Learned counsel for the petitioners, *inter-alia*, contends that both the petitioners who are adults have got married on **11.05.2026** and due to the threat being faced from the private respondents, they have moved a representation dated **21.05.2026 (Annexure P-5)**.

3. Notice of motion to the official respondents.

4. Mr. Amandeep Singh Samra, AAG, Punjab, accepts notice on behalf of the official respondents.

5. The petitioners have approached this Court solely on the ground that they have solemnized marriage. However, the present petition appears to have been filed without disclosing any cogent material indicating



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a genuine threat perception. It is also not forthcoming from the pleadings that, if the petitioners were indeed apprehending any threat to their life and liberty, that what prevented them from approaching the nearest police station. Moreover, instead of reporting the matter, the petitioners have merely submitted a representation to the Senior Superintendent of Police and, on that basis alone, have now invoked the extraordinary writ jurisdiction of this Court. Needless to mention that mere dispatch of a representation to the police authorities cannot, by itself, be a ground for seeking directions from this Court in the absence of any cogent material demonstrating a real and imminent threat.

6. The present petition is being considered only for the purpose of protection of life and liberty of the petitioners and the filing, pendency or the orders passed by this Court in this petition shall neither be construed as any stamp of the Court *qua* marriage of the petitioners nor shall be relied upon by any authority in any proceedings initiated against the petitioners under any other provision of law, hence, there is no necessity to serve the private respondent(s) or to seek a reply from them.

7. In view of the above, the petition is disposed of with a direction to respondent No.2-Senior Superintendent of Police, District SAS Nagar Mohali, to take into consideration the request of the petitioners made vide representation dated **21.05.2026 (Annexure P-5)** and take appropriate action, in accordance with law and in terms of the guidelines/SOPs issued vide judgment passed by a Coordinate Bench of this Court in **CRWP-12562-2023** dated 14.06.2024.



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8. It is made clear to the petitioners that, in case, any averments made in this petition or in the representation dated **21.05.2026 (Annexure P-5)** are found to be incorrect, the State authorities are directed to take appropriate action, in accordance with law.

9. However, since this petition is being disposed of in *limine*, therefore, copy of the complete paper book be sent through registered post to respondent Nos.4 and 5-parents of petitioner No.1.

10. Although, the State is duty bound to protect its citizens, however, in case, there is any criminal record of the petitioners, the present order shall not be an *alibi* or an impediment against the authorities to proceed in accordance with law and the above order is subject to cross verification of the antecedents of the petitioners. Furthermore, it will be the responsibility of the concerned SHO to verify the original documents demonstrating the correct age and residential address of the petitioners before considering their representation after getting the same counter-checked by the private respondents.

June 01, 2026

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Whether speaking/reasoned:-

Yes/No

Whether Reportable:-

Yes/No

(ALOK JAIN)
JUDGE